

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: June 22, 2026

Department C-15 hears law and motion on Mondays at 1:45 p.m.

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Davis v. Pfaffly 2022-01294841 Discovery Motions as to Carol Pfaffly Discovery Motions as to Larry Pfaffly	Plaintiff Jaimie Davis' motions to compel Defendants Larry Gene Pfaffly and Carol A Pfaffly to serve further responses to Plaintiff's Form Interrogatories, Set Two; Special Interrogatories, Set Two; Requests for Production, Set Two; and Requests for Admissions, Set Two are CONTINUED to a date to be determined by parties and the court. All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed. The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i>
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		(2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties did not meaningfully meet and confer prior to Plaintiff filing amended motions. The parties/counsel are ORDERED to engage in additional attempts to meet and confer, in person, telephonically, or over remote videoconferences (not email), to resolve these disputes informally, or to narrow the scope of the dispute. If Defendants agree to serve further responses, Defendants shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a JOINT STATUS REPORT, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing.
2	Flores v. General Motors, LLC 2024-01397024 Motion for Summary Judgment/Adjudication	Defendant General Motors LLC's Motion for Summary Judgment or, Alternatively, for Summary Adjudication is GRANTED. Plaintiffs' written objections (ROA 100) are OVERRULED. Plaintiffs' request for a continuance is DENIED. To be entitled to a mandatory continuance under Code Civ. Proc. §437c, subdivision (h), an opposing party's declaration in support of a motion to continue the summary judgment hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (<i>Johnson v. Alameda County Med. Ctr.</i> (2012) 205 Cal.App.4th 521, 532 (<i>Johnson</i>).) Plaintiffs request a continuance for 60 days in order to depose GM's Person Most Qualified ("PMQ"). Plaintiffs contend they have made multiple attempts to schedule a deposition of both Defendants' respective PMQs, but neither Defendant has produced their witness. Plaintiffs contend Defendants have deprived them of the opportunity to elicit information that could lead to more disputes of material fact. Plaintiffs failed to file a declaration in support of their request for a continuance. Plaintiffs also failed to establish good cause since no special circumstances are presented here.